

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 20
JUDICIAL OFFICER: MELISSA O'CONNELL
HEARING DATE: 12/04/2025

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties email or call the department rendering the decision to request argument and to specify the issues to be argued. Calling counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of their decision to appear and of the issues to be argued. Failure to timely advise the Court and counsel or self[1]represented parties will preclude any party from arguing the matter. (Local Rule 3.43(2).)

Note: In order to minimize the risk of miscommunication, parties are to provide an EMAIL NOTIFICATION TO THE DEPARTMENT OF THE REQUEST TO ARGUE AND SPECIFICATION OF ISSUES TO BE ARGUED. Dept. 20's email address is: dept20@contracosta.courts.ca.gov. Warning: this email address is not to be used for any communication with the department except as expressly and specifically authorized by the court. Any emails received in contravention of this order will be disregarded by the court and may subject the offending party to sanctions.

Submission of Orders After Hearing in Department 20 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling must be attached to the proposed order when submitted to the Court for issuance of the order.

Discovery Law & Motion

1. 9:00 AM CASE NUMBER: C23-02656
CASE NAME: MARIA ANGUIANO VS. JOHN BALQUIST
*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO FORM INTEROGS SET 1
FILED BY: BETHEL ISLAND ESTATES MHC, LLC

TENTATIVE RULING:

Defendant's motion to compel further responses to Form Interrogatories, set one, is GRANTED in part and DENIED in part. Plaintiff is ORDERED to provide objection-free, code-compliant responses by January 9, 2025.

Defendant's motion to compel further responses to Requests for Admissions, set one, is GRANTED in part and DENIED in part. Plaintiff is ORDERED to provide objection-free, code-compliant responses by January 9, 2025.

At this time, Defendant's request for monetary and terminating sanctions is DENIED.

Form Interrogatories, Set One:

On May 29, 2025, Defendant Bethel Island Estates MHC LLC (also on behalf on Monte Christo Communities LLC) served Form Interrogatories, Set One. The Form Interrogatories contained 9 requests. On June 26, 2025, Plaintiff Martinez served only objections to each request. The court observes that while Plaintiff's objections were not all identical, although 5 of 9 were, the objections all appear to object as to the requests being vague, ambiguous, irrelevant and a violation of the right to privacy.

Pursuant to California Code of Civil Procedure section 2030.210: (a) The party to whom interrogatories have been propounded shall respond in writing under oath separately to each interrogatory by any of the following:

- (1) An answer containing the information sought to be discovered.
- (2) An exercise of the party's option to produce writings.
- (3) An objection to the particular interrogatory.

The answer to each interrogatory must be "as complete and straightforward as the information reasonably available to the responding party permits." (California Code of Civil Procedure section 2030.220(a); *Collin v. CalPortland Co.* (2014) 228 Cal.App.4th 582, 590.) Objections must be justified with specific grounds set forth clearly in the response. (California Code of Civil Procedure, section 2030.240.) Boilerplate or unsubstantiated objections are disfavored by courts and may be sanctionable. (See *Korea Data System Co. v. Superior Court* (1997) 51 Cal.App.4th 1513, 1516.) "If an interrogatory cannot be answered completely, it shall be answered to the extent possible." (CCP § 2030.220(b).) "If the responding party does not have personal knowledge sufficient to respond fully to an interrogatory, that party shall so state, but shall make a reasonable and good faith effort to obtain the information by inquiry to other natural persons or organizations, except where the information is equally available to the propounding party." (CCP § 2030.220(c).) An answer is incomplete if it merely refers to other documents without summarizing them. (*Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 783-784.)

Generally, several of the form interrogatory requests relate to general background information about the Plaintiff and one relates to Plaintiff's responses to requests for admission. The court finds that none of Plaintiff's objections have merit given the nature of the interrogatory in the context of this case.

For example, Form Interrogatory 2.2 merely asks for Plaintiff's date and place of birth, to which Plaintiff objects to this interrogatory because it is overly burdensome and oppressive and that the information sought is obtainable from some other source that is more convenient, less burdensome, or less expensive, and seeks information that is equally available to Defendant. The objection is without merit.

While Plaintiff filed no opposition, this court must still consider the privacy interests at stake as some of Plaintiff's requests seek information that is protected under the California Education Code. (See *Thatcher v. Lucky Stores, Inc.* (2000) 79 Cal. App. 4th 1081, 1087 ["The lack of opposition in the instant case thus was an improper ground upon which to grant summary judgment, in the absence of a finding that defendant met its initial burden of proof."]; see also California Rules of Court 3.1348, subdivision (b) the failure to file a written opposition or to appear at a hearing or the voluntary provision of discovery shall not be deemed an admission that the motion was proper or that sanctions should be awarded.)

On balance, this court finds Plaintiff's objections were meritless and therefore Defendant's Motion to Compel Further Responses to Form Interrogatories, set one is GRANTED and Plaintiff is ORDERED to provide, objection-free, code compliant responses by January 9, 2026.

Requests for Admissions, Set One:

On May 29, 2025, Defendant Bethel Island Estates MHC LLC (also on behalf on Monte Christo Communities LLC) served Form Interrogatories, Set One and Requests for Admissions, Set One on Plaintiff Martinez. The Requests for Admissions contained 19 separate requests. On June 26, 2025 Plaintiff provided the same objection to all 19 requests for admission:

Plaintiff objects to the extent this Request is vague and ambiguous or fails to identify the requested information with reasonable particularity. It also seeks information protected by the work product doctrine or attorney-client privilege, so Plaintiff objects on grounds that this Request seeks Plaintiff's counsel's legal analysis. Plaintiff further objects because this Request is overly burdensome, duplicative, unreasonably cumulative, and oppressive. The information sought is obtainable from some other source that is more convenient, less burdensome, or less expensive. Also, this Request violates Code. Civ. Proc. § 2019.030 which prohibits duplicative written discovery. See also, *Vidal Sassoon v. Sup. Ct.* (1983) 146 Cal.App. 681, 685; *Sexton v. Sup. Ct.* (1987) 58 Cal.App.4th 1403, 1408-1409; *Professional Career Colleges, Magna Institute v. Sup. Ct.* (1989) 207 Cal.App.3d 490, 494.

Pursuant to California Code of Civil Procedure 2033.220, subdivision (a): "Each answer in a response to requests for admission shall be as complete and straightforward as the information reasonably available to the responding party permits." (*Id.*) Boilerplate or unsubstantiated objections are disfavored by courts and may be sanctionable. (See *Korea Data System Co. v. Superior Court* (1997) 51 Cal.App.4th 1513, 1516.)

This court observes that all 19 requests for admission relate to the circumstances surrounding and involving Plaintiff's, purportedly signed, General Release Agreement with Defendants for the subject property in this action. Plaintiff's fails to provide a single substantive response and provides the same objection to all 19 requests. The court reviewed each request for admission and finds Plaintiff's objections to be meritless.

While Plaintiff filed no opposition, this court must still consider the privacy interests at stake as some of Plaintiff's requests seek information that is protected under the California Education Code. (See *Thatcher v. Lucky Stores, Inc.* (2000) 79 Cal. App. 4th 1081, 1087 ["The lack of opposition in the instant case thus was an improper ground upon which to grant summary judgment, in the absence of a finding that defendant met its initial burden of proof."]; see also California Rules of Court 3.1348, subdivision (b) the failure to file a written opposition or to appear at a hearing or the voluntary

provision of discovery shall not be deemed an admission that the motion was proper or that sanctions should be awarded.)

On balance, this court finds Plaintiff's objections were meritless and therefore Defendant's Motion to Compel Further Responses to Requests for Admissions, set one is GRANTED and Plaintiff is ORDERED to provide, objection-free, code compliant responses by January 9, 2026.

Defendant's requests for monetary and/or terminating sanctions is DENIED at this time.

The court must order sanctions unless substantial justification or other circumstances make imposing sanctions unjust. (C.C.P. section 2025.450(g)(1), *Van v. LanguageLine Solutions* (2017) 8 Cal.App.5th 73, 82.) At this time, the court finds sanctions are not appropriate. The court finds that while Plaintiff was represented by counsel at the time of her response to Defendant's discovery request, the court finds that Plaintiff's counsel failed to properly respond to the requests. On November 21, 2025, counsel was relieved from representing Plaintiff Martinez. The court finds, currently, it unjust to order Plaintiff herself to be responsible for sanctions under the circumstances.

At this time, the court does not find that terminating sanctions would be appropriate. (See in contrast, *Creed-21 v. City of Wildomar* (2017) 18 Cal. App. 5th 690 [Court's terminating sanction against plaintiff found appropriate where court had already issued less severe monetary sanctions and two orders to compel plaintiff to produce the witness for deposition for which plaintiff failed to comply].)

The court will observe that this is the second Motion to Compel that the court has granted against Plaintiff. The previous Motion to Compel was granted on October 9, 2025, with an order for sanctions if Plaintiff did not comply with the court's order for Plaintiff to communicate with Defendant's counsel to schedule a deposition. According to Defendant's most recent brief filed November 25, 2025, it appears that Plaintiff did not comply with the court's order.

Thus, the Plaintiff is on notice that any further failures to comply with the court's orders compelling Plaintiff to provide further responses to discovery could possibly result in monetary, evidentiary or terminating sanctions against Plaintiff. (See *Creed-21 v. City of Wildomar* (2017) 18 Cal. App. 5th 690.)

2. 9:00 AM CASE NUMBER: C24-03117

CASE NAME: JOSEPH GIOVINCO VS. FORD MOTOR COMPANY, A DELAWARE CORPORATION

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO PROD OF DOCS, SET 1**

FILED BY: GIOVINCO, JOSEPH ANTHONY

TENTATIVE RULING:

Plaintiff's Motion to Compel Further Responses to Request for Production of Documents, Set One is GRANTED in part and DENIED in part. The Motion is granted only to the extent that Defendant is ORDERED to provide Plaintiff with privilege logs for any requests with asserted privileges or work product protections by January 9, 2026. Plaintiff's Motion to Compel Further Responses to Request for Production of Documents is otherwise denied.

On or about February 24, 2025, Plaintiffs propounded Request for Production of Documents, Set One, on Defendant, which included 31 requests related to Plaintiff's action under the Song-Beverly Act for alleged nonconformities or defects in their 2023 Ford Escape. Under the Song-Beverly Act, the cause of action at issue here, "[a] plaintiff pursuing an action under the Act has the burden to prove that (1) the vehicle had a nonconformity covered by the express warranty that substantially impaired the use,